

Urmila Devi v. State of U.P. — nearest-pole connection relegated to CGRF

High Court of Judicature at Allahabad · Division Bench · 7 December 2019 · WRIT - C No. - 40374 of 2019 · **Writ disposed of; petitioner relegated to CGRF under Clause 7.10.**

HEADNOTE

A writ seeking certiorari against an electricity-department order and mandamus for connection to the nearest pole was disposed of on the un rebutted plea of alternative remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Liberty was granted to approach the Consumer Grievance Redressal Forum; a representation filed with a certified copy of the order within two weeks was to be decided by reasoned order in accordance with law, preferably within three months.

FACTUAL SUMMARY

Urmila Devi approached the Allahabad High Court seeking certiorari to quash an order dated 6 November 2019 of respondent no. 3 and a mandamus directing the electricity authorities to connect her supply to the pole nearest her house. Counsel for the Electricity Department submitted that she had an alternative remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005, before the Consumer Grievance Redressal Forum. Counsel for the petitioner did not dispute that contention.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as alternative remedy for connection grievance

HOLDING

Where the petitioner sought quashing of an electricity-department order and mandamus for connection to the nearest pole, and the licensee's counsel invoked Clause 7.10 of the U.P. Electricity Supply Code, 2005 as an alternative remedy before the Consumer Grievance Redressal Forum, which the petitioner did not dispute, the High Court disposed of the writ by granting liberty to approach the CGRF under Clause 7.10, directing that a representation filed with a certified copy of the order within two weeks be considered and decided by reasoned order in accordance with law, preferably within three months. ¶ 1

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10 The Division Bench accepted the licensee's un rebutted submission that Clause 7.10 furnished an alternative remedy before the CGRF for a nearest-pole connection grievance, and disposed of the writ by sending the petitioner to that forum rather than examining the connection or the impugned order on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ORDER DATED 6.11.2019 AND THE CLAIM FOR CONNECTION TO THE NEAREST POLE

Writ disposed of on alternative remedy under Clause 7.10 without examining the merits. ¶ 1